

The Motion for Leave to File Cross Complaint is unopposed. The Motion is **granted**. Defendant shall file the Cross Complaint within 5 business days and serve it with diligence.

8. 9:00 AM CASE NUMBER: C25-00751
CASE NAME: DEAN LANGSTON VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: LANGSTON, DEAN
TENTATIVE RULING:

Plaintiff Dean Langston filed this Song-Beverly action on March 17, 2025 against General Motors, LLC. The case resolved at mediation on October 16, 2025, but Langston opted to seek fees through this Motion, filed April 27, 2026. GM opposes.

Discussion

Timeliness of Motion

GM first argues that the motion is untimely, under California Rule of Court 3.1702, because it was filed 193 days after settlement. Rule 3.1702 requires a Motion for Attorney's Fees within the same time frame as an appeal—here 180 days. While there was no judgment, the case did resolve by settlement. California Rule of Court 3.1385 required Langston to “immediately” file written notice of settlement. Langston failed to do so, instead waiting until April 23, 2026 to do so, which was 189 days later. As discussed in *Hatlevig v. General Motors LLC*, 118 Cal.App.644, 649-650, once plaintiff files a notice of settlement, the plaintiff *must* dismiss the case within 45 days unless there is good cause not to do so, pursuant to California Rule of Court 3.1385(b). The Motion for Attorney's fees is due no later than 180 days after that dismissal date. *Hatlevig* applied those deadlines even where the dismissal did not occur as it should have. Had Langston filed a Notice Settlement in a timely manner, the motion would have been due no later than 225 (45+180) days later. Assuming that “immediately” means the next day, the earliest date that the motion could have been untimely would therefore have been May 30, 2026. He filed April 28, 2026. Although in no way was Langston diligent, and certainly counsel was not compliant with Rule 3.1702, the Motion itself was not untimely.

Attorney's Fees

Rates

GM also takes issue with Plaintiff's proposed rates. GM presents only an unsubstantiated statement that Los Angeles attorney rates are higher than those of Contra Costa County. GM does not present any evidence of the rates it pays its own counsel. On this record, Langston has presented sufficient evidence to support his requested rates.

Billings

The fee amounts, however, are a different story. The Court agrees that counsel cannot recover the fees requested for these boilerplate actions. Use of the same complaint, meet and confer correspondence, and discovery materials is not necessarily disfavored; nor, however, does it merit fee

recovery as if it were original work. After reviewing the documents submitted by both parties, the Court agrees that a reduction in hours is appropriate. [2 hours (\$750) → 1 hour (\$375)] Moreover, the substantial interactions between counsel and the plaintiff are hard to fathom, given the simple nature of the dispute and the quick resolution. [3.5 hours (\$2,211.50) → 1.75 hours (\$1,555.75)] There is substantial work billed that is clerical in nature or overblown for what it could possibly have entailed. [.4 hours (\$142.50) → 0 hours (\$0)] The Court does not understand why counsel was required for the vehicle surrender. Counsel states that a vehicle *inspection* may merit counsel attendance, but this was not a vehicle inspection. [4.4 hours (\$2,420) → 0 hours] Finally, the anticipated time for the reply briefing on this motion and a motion to tax costs (not to mention the excessive time spent on the initial motion itself) is not compensable. Counsel can recover only for reasonable time *actually* spent. Even the anticipated travel is far too speculative, given the practice of Southern California counsel regarding remote appearances. In reply, counsel only offered substantiation of 4 hours for reply, which still appears excessive considering the product and noted repetitive nature of these arguments (by GM as well). The Court will reduce to a reasonable amount. [20.7 hours (\$11,285.50) → 5 hours (\$1,875)]

Multiplier

There is no reason for *any* multiplier here. There is no showing that this work was complex, risky, or required counsel to forgo other work.

The Court agrees with GM's rationale and calculation for hours to be reduced, except the pre-engagement work. The Court will therefore reduce fees in the amount of \$13,003.75, for a total of \$9,349.75.

Costs

GM also objects to certain requested costs. Although the Court has concerns about the propriety of some of the costs in the Memorandum, no Motion to Tax Costs was filed within 15 days, as required by California Rule of Court 3.1700(b). Even if the Court were to construe the overlong pages of GM's brief as a Motion to Tax Costs, it was untimely. The clerk must, pursuant to Rule 3.1700(b)(4) enter the costs on the judgment.

Procedural Issues

Langston cited several unpublished superior court cases. These are absolutely unciteable. The only reason the Court can receive any of these is for demonstration of reasonable rates. All other citations—e.g. page 9 of Langston's reply brief—are in violation of California Rule of Court 8.1115.

Langston also filed a supplemental declaration as an attachment to the Reply brief. This is not appropriate, as it does not allow the Court to reasonably consider all of the papers.

GM's opposition brief exceeded the page limit. The final two pages address costs, which GM did not timely contest in any event, as stated above.